

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 04/30/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10
Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Law & Motion

1. 9:00 AM CASE NUMBER: C23-02512
CASE NAME: JOSE REYNOSO VS. ERIC OTANI, MD
HEARING ON PETITION IN RE: APPROVAL OF COMPROMISE OF CLAIM
FILED BY: REYNOSO, JOSE
TENTATIVE RULING:

Plaintiff Jose Reynoso, by and through his Guardian Ad Litem Ma. Del Lourdes Hidalgo, brought this suit against Buenavista Group Homes, Inc. and Eric Otani, M.D. for dependent adult abuse, general negligence, and medical malpractice. The parties have resolved the matter, and now seek the Court's approval, as Plaintiff Reynoso is a disabled adult.

Background

Plaintiff Reynoso has cognitive developmental disabilities, dysphagia, gastritis and gastroduodenitis,

and partial epilepsy. He was a resident of Buenavista Group Homes on choking risk procedures when he swallowed a one-inch ball. The incident caused a rupture in his esophagus, resulting in permanent digestive injuries necessitating a permanent G-Tube.

Defendants have offered combined settlement in the amount of \$929,999.98. There are deductions as follows: (1) \$99,787.59 for medical expenses to Medi-Cal; (2) \$17,783.54 for costs; (3) \$10,000 for expenses for the Special Needs Trust; and (4) \$362,945.74 for attorneys' fees (39% of the recovery). The remainder is therefore \$439,482.11, to be placed in his Special Needs Trust.

The parties additionally seek findings relating to the need for and establishment of the Special Needs Trust.

The Court notes that the settlement is substantial—although the damages alleged were certainly substantial as well. The Court is carefully examining the attorneys' fees. The Court acknowledges that the fee agreement permitted fees of 45% of the recovery once litigation has commenced and that the requested amount represents a 6% reduction from that contract. In the Court's experience, 45% is a very high amount for such an early trigger. On the other hand, this case is not new and counsel did have to do some litigation, including taking four depositions, engaging consulting experts, and reviewing medical experts. The Court believes that the fee percentage of 45% would not be consistent with the criteria for a reasonable attorney's fee under CRC 7.955(b). In this particular case, given the strong result, the work done, and the reduction to below 40%, the Court finds that the fee is reasonable.

Ruling

The Court finds that (1) Jose Reynoso has a disability that substantially impairs his ability to provide for his own care or custody and constitutes a substantial handicap; (2) Jose Reynoso is likely to have special needs that will not be met without this trust; and (3) the money being transferred to the trust does not exceed the amount that appears reasonably necessary to meet Jose Reynoso's special needs. The Court hereby establishes the Jose Reynoso Irrevocable Special Needs Trust. The Court authorizes and directs Ma. De Lourdes Hidalgo to execute the Jose Reynoso Irrevocable Special Needs Trust as guardian ad litem for Jose Reynoso and as trustee of the Jose Renoso Irrevocable Special Needs Trust.

After careful examination of the Petition, declarations, and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise lodged on December 17, 2025.

2. 9:00 AM CASE NUMBER: C24-02709
CASE NAME: MARIA SEREDKINA VS. PAVEL YEFENAU
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES**
FILED BY: YEFENAU, PAVEL
TENTATIVE RULING:

Defendant Pavel Yefenau brings this Motion to Compel Further Responses to Special Interrogatories served on Plaintiff Maria Seredkina. The Court received no timely opposition

Background

Pursuant to the declaration from Defendant Plaintiff served responses to Special Interrogatories (after stipulated extensions) on August 28, 2025, with verifications on August 29, 2025. Defendant began the meet and confer process on September 23, 2025, and although Plaintiff promised amended responses, none were served before Defendant's deadline for this motion. Defendant seeks further responses to several interrogatories. Apparently one day prior to filing the opposition, and five and a half months after this Motion was filed, Plaintiff finally served amended discovery responses. Plaintiff acknowledges that the initial responses were deficient, but opposes the Motion on two grounds: (1) Defendant's Separate Statement is purportedly procedurally deficient; and (2) three of the responses are Code Compliant.

Analysis

Format of Separate Statement

Although Plaintiff is correct that definitions should be provided where appropriate in the Separate Statement, most of the definitions that were omitted were to easily defined terms. The remainder have been cured by the Reply Separate Statement. The Court will consider this Motion.

Special Interrogatory No. 10

Defendant sought a specific date and Plaintiff provided a month. Plaintiff's amendment clarifies that no more specificity is possible. This is satisfactory. Defendant appears to agree, as this Interrogatory is not discussed in the Reply Separate Statement.

Special Interrogatory No. 11

Defendant sought *information* Plaintiff believes Defendant accessed on her devices, and Plaintiff provided general information. Plaintiff amended answer provides the requisite specificity. While Defendant wants a list, that is not required.

Special Interrogatory No. 12

Defendant sought information as to how Plaintiff knows that Defendant accessed certain information. Plaintiff's amended response provides more specificity but still does not refer to specific documents. The Court will compel Plaintiff to specifically identify documents and sources of information, instead of the general references to "discovery responses in the related family law proceeding." Otherwise, this answer is compliant.

Special Interrogatory No. 13

Defendant sought information Plaintiff believes Defendant accessed on her phone. Plaintiff's amended response does not identify any information. It must be provided to the extent known.

Special Interrogatory No. 14

Defendant sought information Plaintiff believes Defendant accessed on other devices. Plaintiff's amended response appears to provide the requisite specificity. Defendant appears to agree, as this Interrogatory is not discussed in the Reply Separate Statement.

Special Interrogatory No.15

Defendant sought factual basis for a statement. Plaintiff's amended response provides more specificity but still does not refer to specific documents. The Court will compel Plaintiff to specifically identify documents and sources of information, instead of the general references to "discovery responses in the related family law proceeding."

Special Interrogatory No. 16

Defendant sought factual basis for a statement. Plaintiff's amended response appears to provide the requisite specificity. Defendant appears to agree, as this Interrogatory is not discussed in the Reply Separate Statement.

Special Interrogatory No. 17

Defendant appears to seek clarification as to whether the sole information Plaintiff has with respect to Defendant's access to her personal and work devices is the narrative in the Amended Response. Plaintiff must explain whether this is the entire basis for her allegation in Paragraph 10 or whether there is additional information.

Special Interrogatory No. 18

Defendant asked for identification of specific information, to which Plaintiff responded generally. The Court will compel Plaintiff to specifically identify documents.

Special Interrogatory No. 19

Defendant asked for identification of specific information, to which Plaintiff responded generally. Plaintiff's amended response is close to providing the requisite specificity. It appears that a Protective Order resolves this dispute, and there is one in place, so Plaintiff can supplement with protected information, subject to that Order.

Special Interrogatory No. 20

Defendant asked for identification of specific information, to which Plaintiff responded generally. Plaintiff's amended response is close to providing the requisite specificity. It appears that a Protective Order resolves this dispute, and there is one in place, so Plaintiff can supplement with protected information, subject to that Order.

Special Interrogatory No. 23

Defendant asked for identification of specific information, to which Plaintiff responded generally. Plaintiff must provide more specific answers. The amended response is virtually identical to the original response. Defendant did not address this Interrogatory in the Reply Separate Statement.

Special Interrogatory No. 27

Defendant asked for identification of specific information, to which Plaintiff responded generally and referred to a prior Interrogatory Response. Plaintiff must provide more specific, stand-alone answers. Defendant did not address this Interrogatory in the Reply Separate Statement.

Special Interrogatory No. 29

Defendant asked for identification of specific information, to which Plaintiff responded generally. The Court will compel Plaintiff to specifically identify documents and sources of information, instead of the general references to “discovery in the related family law matter.”

Special Interrogatory No. 33

Defendant sought specific dates and Plaintiff provided months. Plaintiff’s amended response appears to provide the requisite specificity. Defendant did not address this Interrogatory in the Reply Separate Statement.

Sanctions

Defendant also seeks sanctions in the amount of \$2,910.00. Plaintiff has amended responses and claims that renders the motion moot, and on that basis believes the request for sanctions should be denied. California Rule of Court 3.1348(a) provides: “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though . . . the requested discovery was provided to the moving party after the motion was filed.” Sanctions here are appropriate. Counsel’s explanation for waiting until one week before the hearing to amend responses is not satisfying. It not only makes the moving party do extra work, it places an extra burden upon the Court (both the judge and staff). These were not substantial amendments and they did not require six months of wait. The Court will grant the request for sanctions payable to counsel for Defendant within 30 days of this order.

3. 9:00 AM CASE NUMBER: C24-02709
CASE NAME: MARIA SEREDKINA VS. PAVEL YEFENAU
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES**
FILED BY: YEFENAU, PAVEL
TENTATIVE RULING:

Defendant Pavel Yefenau brings this Motion to Compel Further Responses to Form Interrogatories served on Plaintiff Maria Seredkina. Plaintiff Seredkina filed a brief opposition.

Background

Pursuant to the declaration from Defendant—facts to which Plaintiff explicitly concedes—Plaintiff served responses to Form Interrogatories (after stipulated extensions) on August 28, 2025, with verifications on August 29, 2025. Defendant began the meet and confer process on September 23, 2025, and although Plaintiff promised amended responses, none were served before Defendant’s

deadline for this motion. Apparently one day prior to filing the opposition, and five and a half months after this Motion was filed, Plaintiff finally served amended discovery responses. Plaintiff acknowledges that the initial responses were deficient, but opposes the Motion on two grounds: (1) Defendant's Separate Statement is purportedly procedurally deficient; and (2) three of the responses are Code Compliant.

Analysis

Format of Separate Statement

The Court does not agree that the failure to provide definitions to Form Interrogatory terminology violates California Rule of Court 3.1356(c). Nor does the Court find, in this particular circumstance, that Defendant's efforts to combine the discussion of twelve Form Interrogatories violates the rules, given the particulars of these responses. Finally, the Court will not ignore this motion simply because the Requests for Admission were in a footnote.

Form Interrogatory Nos. 2.4, 6.3, 6.6, 8.5, 8.6, 8.7, 9.1, 10.1, 10.2, 12.1, 12.2, 12.3, 12.4

As Defendant acknowledges, Plaintiff has now provided her substantive responses.

Form Interrogatory No. 17.1 – RFA No. 22

Plaintiff's response appears to be code compliant. Defendant's complaints appear to be with Plaintiff's answer to the Request for Admission, which is not before the Court at this time.

Form Interrogatory No. 17.1 – RFA No. 24

Defendant asked Plaintiff to admit "that a spouse has a right to know of the extramarital affairs of his or her spouse." She declines to respond substantively because the request "encompasses 'moral obligations.'" Requests for Admission may properly be addressed as to fact, law, or opinions. (*See, e.g., Chodos v. Sup. Ct (Lowe)* (1963) 215 Cal.App.2d 318, 321.) It is certainly true, however, that Plaintiff will be unable to provide responses to (c) and (d), so while the Request for Admission may be permissible, it is unlikely that this *Interrogatory* is necessary or proper. The Court declines to order further response. Defendant's complaints appear to be with Plaintiff's answer to the Request for Admission, which is not before the Court at this time.

Form Interrogatory No. 17.1 – RFA No. 25

Defendant requested that Plaintiff admit that she "misle[d] Yefanau when denying that [she was] having an extramarital affair after [her] affair with MASCHMEIER had begun." Plaintiff argues that the definition of "mislead" requires knowledge of what was in Plaintiff's mind. The Court disagrees. She also argues that this request is compound. Although it assumes certain predicate facts, that does not render it incapable of a yes or no answer. Again, however, while the Request for Admission may be permissible, it is unlikely that she will be able to provide responses to (c) or (d). She must, however, supplement (b).

Sanctions

Defendant also seeks sanctions in the amount of \$3,385.00. Plaintiff has amended responses and

claims that renders the motion moot, and on that basis believes the request for sanctions should be denied. California Rule of Court 3.1348(a) provides: “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though . . . the requested discovery was provided to the moving party after the motion was filed.” Sanctions here are appropriate. Counsel’s explanation for waiting until one week before the hearing to amend responses is not satisfying. It not only makes the moving party do extra work, it places an extra burden upon the Court (both the judge and staff). These were not substantial amendments and they did not require six months of wait. The Court will grant the request for sanctions payable to counsel for Defendant within 30 days of this order.

4. 9:00 AM CASE NUMBER: C24-02709

CASE NAME: MARIA SEREDKINA VS. PAVEL YEFENAU

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSE AND PRODUCTION IN
RESPONSE TO REQUEST FOR PRODUCTION OF DOCUMENTS**

FILED BY: YEFENAU, PAVEL

TENTATIVE RULING:

Defendant Pavel Yefenau brings this Motion to Compel Further Responses to Special Interrogatories served on Plaintiff Maria Seredkina. The Court received no timely opposition

Background

Pursuant to the declaration from Defendant Plaintiff served responses to Requests for Production of Documents (after stipulated extensions) on August 28, 2025, with verifications on August 29, 2025. Defendant began the meet and confer process on September 23, 2025, and although Plaintiff promised amended responses, Plaintiff did not fully address or amend responses to Requests 3 and 4. Defendant seeks further responses to these two requests. Apparently one day prior to filing the opposition, and five and a half months after this Motion was filed, Plaintiff finally served amended discovery responses. Plaintiff acknowledges that the initial responses were deficient, but opposes the Motion on two grounds: (1) Defendant’s Separate Statement is purportedly procedurally deficient; and (2) three of the responses are Code Compliant.

Analysis

Request for Production of Documents No. 3

Defendant sought documents relating to Stuart Maschmeier that Defendant is believed to have accessed. Plaintiff responded by identifying the categories of documents but stating that all the material was deleted. Plaintiff has amended her response to comply with the Code and it appears satisfactory at this time.

Request for Production of Documents No. 4

Defendant sought documents relating to Plaintiff’s employer Zeiss that Defendant is believed to have accessed. Plaintiff responded that the request was overbroad and implicated confidential and

proprietary information. The Court does not agree with the overbreadth objection in this case. Plaintiff must begin by precisely identifying the information. If any information is confidential and cannot be produced even with a protective order, then Plaintiff must log it so that Defendant can review whether to seek further guidance from the Court.

Sanctions

Defendant also seeks sanctions in the amount of \$1,247.50. Plaintiff has amended responses and claims that renders the motion moot, and on that basis believes the request for sanctions should be denied. California Rule of Court 3.1348(a) provides: "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though . . . the requested discovery was provided to the moving party after the motion was filed." Sanctions here are appropriate. Counsel's explanation for waiting until one week before the hearing to amend responses is not satisfying. It not only makes the moving party do extra work, it places an extra burden upon the Court (both the judge and staff). These were not substantial amendments and they did not require six months of wait. The Court will grant the request for sanctions payable to counsel for Defendant within 30 days of this order.

5. 9:00 AM CASE NUMBER: C25-00344
CASE NAME: CHERI MEZZAPELLE VS. CIVIC FELINE CLINIC
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: CIVIC FELINE CLINIC
TENTATIVE RULING:

This demurrer was rendered moot by Defendant's filing of an Answer.

6. 9:00 AM CASE NUMBER: C25-00344
CASE NAME: CHERI MEZZAPELLE VS. CIVIC FELINE CLINIC
***HEARING ON MOTION IN RE: STRIKE 1ST AMENDED COMPLAINT**
FILED BY: CIVIC FELINE CLINIC
TENTATIVE RULING:

This Motion was rendered moot by Defendant's filing of an Answer.

7. 9:00 AM CASE NUMBER: C25-01410
CASE NAME: LUIS BARRERA VS. OSVALDO GARCIA
***HEARING ON MOTION IN RE: SANCTIONS**
FILED BY: GARCIA, OSVALDO
TENTATIVE RULING:

Plaintiff Luis Barrera brings this employment discrimination action against Timberworks Construction, Inc., Timberworks Construction, LLC, and Osvaldo Garcia. By this Motion, Defendants seeks sanctions pursuant to Code of Civil Procedure section 128.7, to dismiss the complaint and award attorneys' fees and costs to Defendants. It should be noted that Plaintiffs' counsel has a pending motion to be relieved as counsel, set for after this date.

Background

Prior to filing this lawsuit, Plaintiff engaged in negotiations with Defendants. Defendants aver that on multiple occasions, they transmitted to counsel a release from Plaintiff's workers compensation matter, purporting to release the claims at issue here. For that reason, they argue that Plaintiff's complaint is frivolous, as it is subject to a settlement agreement about which he knew prior to filing.

Plaintiff acknowledges the existence of this settlement agreement but argues that, for reasons the Court will not fully evaluate today, it does not extend to the matters in this case. A brief summary of their arguments is that the release is ambiguous as to discrimination claims, especially in the context of the Workers' Compensation process and paperwork, and that it lacked adequate consideration.

Analysis

California Code of Civil Procedure section 128.7 permits the imposition of sanctions where a pleading is filed for an improper purpose or is "indisputably without merit, either legally or factually." (*Guillemin v. Stein* (2002) 104 Cal.App.4th 156, 168.) The statute applies an objective standard: "A claim is objectively unreasonable if any reasonable attorney would agree that [it] is totally and completely without merit." (*Id.*) This is not a situation where Defendants argue that there is no *factual* support for Plaintiff's claims; instead this motion involves an argument that he is barred from bringing the claims because of a release he signed.

Although Defendants did nominally place the scope of the release before the Court in the context of this motion, there is certainly insufficient information for the Court to determine—on this record and in this procedural posture—that there is no merit to Plaintiff's assessment that the release is capable of multiple interpretations. Plaintiff is not pretending the release does not exist; instead he is prepared to argue that it does not bar his claims. Regardless of the ultimate merits of that argument, it is not facially frivolous.

In Reply, Defendants question the veracity of Plaintiff's counsel's arguments about having analyzed the release for three reasons: (1) emails after the Safe Harbor notice was filed suggest that counsel was still confirming the document with the client; (2) counsel represented at the September 15, 2025 Case Management Conference that he had never seen the Release; and (3) the release was not pled in the complaint. The Court reads the email language as ambiguous and subject to interpretations consistent with a review of the release *language* but representing investigation on other aspects. The Court does not have a transcript of the Case Management Conference and does not know what exactly was said, but if Counsel represented that he had not seen it, that representation would be troubling. It is not, however, dispositive absent further discussion, which is missing. Finally, it is not required for a plaintiff to plead around the release.

For that reason, terminating sanctions are inappropriate. Defendants' Motion is **denied**.

8. 9:00 AM CASE NUMBER: C25-02433
CASE NAME: FTX RECOVERY TRUST, VS. ARMANINO LLP
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF COMPLAINT**
FILED BY: ARMANINO LLP
TENTATIVE RULING:

Off Calendar. (See Joint Notice of Settlement filed 4/22/26.)

9. 9:00 AM CASE NUMBER: C25-02433
CASE NAME: FTX RECOVERY TRUST, VS. ARMANINO LLP
HEARING ON DEMURRER TO: PLAINTIFF'S COMPLAINT (TO BE FILED BY DEFENDANTS AS THEY STIPULATED)
FILED BY:
TENTATIVE RULING:

Off Calendar. (See Joint Notice of Settlement filed 4/22/26.)

10. 9:00 AM CASE NUMBER: C25-02730
CASE NAME: TADEUSZ WYRZYKOWSKI VS. CSW CONSTRUCTION GROUP
***HEARING ON MOTION IN RE: SET ASIDE DEFAULT**
FILED BY: CSW CONSTRUCTION GROUP
TENTATIVE RULING:

Before the Court is Defendant CWS Construction Group's Motion to set Aside Default.

Procedural History

Plaintiff filed his Complaint on September 29, 2025. The operative First Amended Complaint (FAC) was filed on October 20, 2025. On December 1, 2025, Defendant filed a Declaration of Demurring Party in Support of Automatic Extension. On December 8, 2025, Plaintiff filed a Proof of Service of Summons that asserts that the summons, complaint, and FAC were personally served on Defendant on October 18, 2025.

On January 20, 2026, Plaintiff filed a Request for Entry of Default on the Complaint filed on September 29, 2025. The Default was entered that same date. On January 23, 2026, Defendant filed the instant motion to set aside.

The Court's docket shows Plaintiff filed her Opposition on March 20. No proof of service has been filed, however. Proof of service of papers must be filed with the Court at least five days prior to the hearing. (Cal. R. Ct. 3.1300(c).) Defendant on Reply notes that it was not served with the Opposition.

Normally, the Court would continue the hearing to allow time for the moving party to be properly served and substantively respond to the Opposition. As noted by Defendant, the Opposition does not include any legal authority or reasoned argument opposing Defendant's position. As such, the Court will rule on the Motion at this time.

Plaintiff is cautioned that she must comply with all applicable rules and must timely serve all papers on Defendant. Failure to do so may result in the Court disregarding Plaintiff's papers.

Standard

Defendant CWS first moves to set aside the default pursuant to Code of Civil Procedure section 473 (d). Code of Civil Procedure section 473(d) provides in relevant part:

The court may ... on motion of either party after notice to the other party, set aside any void judgment or order.

Defendant also moves to set aside pursuant to Code of Civil Procedure section 473 (b). Subdivision (b) "includes a discretionary provision, which applies permissively, and a mandatory provision, which applies as of right." (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 25.) "Although this bifurcation is not demarcated in any internal subtitling, it is plainly evidence in the textual structure of the statute." (*Ibid.*)

The 'discretionary' provision is set forth at the beginning of the statute:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.

When moving to set aside a default under CCP §473(b), the moving party has the burden of proof. (*In re Marriage of Kieturakis* (2006) 138 Cal.App.4th 56, 88.) However, section 473 is often applied liberally when a party in default moves promptly to seek relief and the party opposing the motion will not suffer prejudice if relief is granted. (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233.)

Analysis

Defendant first argues that the default should be set aside pursuant to section 473(d) as the default is "void" as it relates to an inoperative pleading. As noted by Defendant, the Request for Default filed by Plaintiff indicates that it is being made with relation to the original complaint filed on September 29, 2025:

1. TO THE CLERK: On the complaint or cross-complaint filed

a. on (date):

9/29/2025

b. by (name):

Tadeusz Wyrzykowski

c. ☒ Enter default of defendant (names):

C S W Construction Group

As noted above, the operative complaint at the time was the FAC which was filed on October 20, 2025.

“It is well established that an amendatory pleading supersedes the original one, which ceases to perform any function as a pleading.” (*Foreman & Clark Corp. v. Fallon*, (1971) 3 Cal.3d 875, 884, quoting *Meyer v. State Board of Equalization* (1954) 42 Cal.2d 376, 384.) “The original ceases to ‘perform any function as a pleading.’” (*Lee v. Bank of America* (1994) 27 Cal.App.4th 197, 215.) “The amended complaint furnishes the sole basis for the cause of action, and the original complaint ceases to have any effect either as a pleading **or as a basis for judgment.**” (*State Compensation Ins. Fund v. Superior Court* (2010) 184 Cal.App.4th 1124, 1131 emphasis added.)

As the original Complaint had no legal effect at the time the default was entered based upon it, given the filing of the FAC prior to the request for default, the default is void and cannot be enforced. As such, it must be set aside.

Conclusion

Defendant CWS Construction’s motion to set aside the default is **granted**. The default entered on January 20, 2026, is set aside. Defendant CWS Construction shall file their responsive pleadings within ten (10) days of notice of entry of the Order on this Motion.

11. 9:00 AM CASE NUMBER: MSC18-02413
CASE NAME: ZERIUS COLLINS VS. HASA, INC. A CALIFORNIA CORPORATION
*MOTION/PETITION TO COMPEL ARBITRATION CONFIRM FINAL ARBITRATION AWARD
FILED BY: GUERRERO, ALEX
TENTATIVE RULING:

Introduction

Before the Court is Plaintiff Alex Guerrero’s (Plaintiff) motion to confirm final arbitration award against Defendant Hasa, Inc.

For the following reasons, **Plaintiff Alex Guerrero’s motion to confirm final arbitration award is granted.**

Procedural Background

The arbitration award at issue stems from this action, which was filed by Plaintiff Zerius Collins (“Collins”) on November 29, 2018, in this Court (the “Action”) alleging a single cause of action for penalties under the Private Attorneys’ General Act (“PAGA”). On May 1, 2019, Plaintiff Collins filed a First Amended Complaint adding Plaintiff Alex Guerrero. Plaintiff Guerrero was employed by Defendant Hasa Inc at their Pittsburgh facility.

On November 3, 2021, the Court denied Defendant’s motion to compel Plaintiff’s claims to arbitration. While an appeal of the Court’s order was pending, the United States Supreme Court decided *Viking River Cruises, Inc. v. Moriana*. As a result, on April 19, 2023, the Parties stipulated that

Plaintiff's individual PAGA claims asserted in the Action would be submitted to individual arbitration and his representative PAGA claim would be stayed pending completion of the individual arbitration. On April 21, 2023, this Court ordered both Plaintiff Collins and Guererro to submit their individual PAGA claims to arbitration pursuant to the Parties' joint stipulation. (Reply Sabourian Decl. ¶ 5.)

On August 21, 2024, Collins accepted the settlement offer. (Reply Sabourian Decl. ¶ 18.) On February 27, 2025, Arbitrator Schaedel granted the Stipulated Consent Award for Collins's arbitration. (Reply Sabourian Decl. ¶ 19, Ex. G.) On June 26, 2025, the Hon. Edward G. Weil signed the proposed Order Granting Petition and Confirming Contractual Arbitration Award to confirm the February 27, 2025 Stipulated Consent Award for Collins's arbitration granted by Arbitrator Schaedel. (Reply Sabourian Decl. ¶ 19, Ex. K.)

On July 7, 2025, Defendant filed and served a Notice of Entry of Judgment or Order. Pursuant to that Notice of Entry of Judgment or Order, a judgment, order, or decree was entered in this action on July 3, 2025. Exhibit A to that Notice of Entry of Judgment or Order was a Judgment "On Stipulation." The Judgment identified the Plaintiff as only Zerius Collins. The Judgment stated: "Plaintiff and defendant agreed (stipulated) that a judgment be entered in this case. The court approved the stipulated judgment and the signed written stipulation was filed in the case." Moreover, the Judgment stated that "Judgment is entered according to the stipulation of the Parties." (Reply Sabourian Decl. ¶ 24, Ex. L.)

Plaintiff Guerrero received a Final Arbitration Award on October 9, 2025. (Reply Sabourian Decl. ¶ 10.)

Legal Standard for Judicial Review of Arbitration Awards

Section 9 of the FAA (9 U.S.C. § 9) governs confirmation of arbitration awards:

If the parties in their agreement have agreed that a judgment of the court shall be entered upon the award made pursuant to the arbitration, and shall specify the court, then at any time within one year after the award is made any party to the arbitration may apply to the court so specified for an order confirming the award, and thereupon the court must grant such an order unless the award is vacated, modified, or corrected as prescribed in sections 10 and 11 of this title. (9 U.S.C. § 9.)

"Review of an arbitration award itself is 'both limited and highly deferential.'" (*DeMartini v. Johns* (9th Cir. June 7, 2017) 693 F. App'x 534, 436; quoting *Sheet Metal Workers' Int'l Ass'n v. Madison Indus., Inc.* (9th Cir. 1996) 84 F.3d 1 186, 1190). A court will set aside an arbitrator's decision "only in very unusual circumstances." (*First Options of Chicago, Inc. v. Kaplan* (1995) 514 U.S. 938, 942.)

Section 10 of the FAA provides a court may vacate an arbitration award under the following circumstances:

- (1) where the award was procured by corruption, fraud, or undue means;
- (2) where there was evident partiality or corruption in the arbitrators, or either of them;
- (3) where the arbitrators were guilty of misconduct in refusing to postpone

the hearing, upon sufficient cause shown, or in refusing to hear evidence pertinent and material to the controversy; or of any other misbehavior by which the rights of any party have been prejudiced; or,
(4) where the arbitrators exceeded their powers, or so imperfectly executed them that a mutual, final, and definite award upon the subject matter was not made. (9 U.S.C. § 10(a)(1)-(4).)

These grounds are “the exclusive means by which a court reviewing an arbitration award under the FAA may grant vacatur of a final arbitration award.” (*Biller v. Toyota Motor Corp.* (9th Cir. 2012) 668 F.3d 655, 664; citing *Hall St. Assoc., LLC v. Mattel, Inc.* (2008) 552 U.S. 576.)) An arbitrator exceeds her power not by merely interpreting or applying the governing law incorrectly, but when the award is “completely irrational, or exhibits a manifest disregard of law.” (*Kyocera Corp. v. Prudential-Bache T Servs.* (9th Cir. 2003) 341 F.3d 987, 997.) To vacate an arbitration award for manifest disregard of the law, “[i]t must be clear from the record that the arbitrators recognized the applicable law and then ignored it.” (*Mich. Mut. Ins. Co. v. Unigard Sec. Ins. Co.* (9th Cir. 1995) 44 F.3d 826, 832.)

Section 11 of the FAA provides that a court may modify or correct an arbitration award under the following circumstances:

- (a) where there was an evident material miscalculation of figures or an evident material mistake in the description of any person, thing, or property referred to in the award;
- (b) where the arbitrators have awarded upon a matter not submitted to them, unless it is a matter not affecting the merits of the decision upon the matter submitted;
- (c) where the award is imperfect in matter of form not affecting the merits of the controversy. (9 U.S.C. § 11(a)-(c).)

These three provisions “substantiat[e] a national policy favoring arbitration with just the limited review needed to maintain arbitration’s essential virtue of resolving disputes straightaway.” (*Hall St. Assoc., LLC v. Mattel, Inc.* (2008) 552 U.S. 588.)

Analysis

Defendant Hasa’s Objections to Jurisdiction are Overruled

Code of Civil Procedure 1292.6 provides that, “[a]fter a petition has been filed under this title, the court in which such petition was filed retains jurisdiction to determine any subsequent petition involving the same agreement to arbitrate and the same controversy, and any such subsequent petition shall be filed in the same proceeding.”

Final Judgment Rule

Defendant Hasa argues that July 7, 2025, stipulated judgment provides: “This judgment shall be given collateral estoppel effect and is binding on all Parties and on the State of California to the extent Plaintiff was authorized to initiate this action in a representative capacity on behalf of the State of California.” (McLoughlin Decl., Ex. 2, p. 5, § 8 [quoting the language of § 8 of judicial council form JUD-

100].)

As pointed out by Plaintiff Guerrero, the July 7, 2025, stipulated judgment only pertained to Plaintiff Zerius Collins. (Reply Sabourian Decl., ¶ 24, Ex. L; Ex. 2, p. 1.) Defendant is correct that the July 7, 2025, stipulated judgment has collateral estoppel effect and is binding on all Parties, but only for the claims of Plaintiff Zerius Collins. The July 7, 2025, stipulated judgment no preclusive effect on Plaintiff Guerrero's claims.

Los Angeles County Action

Pursuant to Code of Civil Procedure 1292.6, after a petition compel arbitration, Contra Costa retains jurisdiction to determine any subsequent petition involving the same controversy and any such subsequent petition shall be filed in the same proceeding. A petition to compel arbitration under CCP 1281.2 is the procedural mechanism to initiate the arbitration process in court. An order compelling arbitration deriving from a stipulation to arbitrate triggers this retained jurisdiction.

On April 21, 2023, this Court ordered Plaintiff and Defendant to arbitration pursuant to the Parties' joint stipulation. (Sabourian Decl., ¶ 5.) Thus, this Court has jurisdiction to hear this motion.

Confirm Arbitration Award

"Neither erroneous legal conclusions nor unsubstantiated factual findings justify . . . court review of an arbitral award under the statute, which is unambiguous in this regard [and] a court must confirm an arbitration award unless it is vacated, modified, or corrected as prescribed in §§ 10 and 11." (*Bosack v. Soward* (9th Cir. 2009) 586 F.3d 1096, 1102 (citations omitted).)

This Court ordered Plaintiff and Defendant to arbitration pursuant to the Parties' arbitration agreement, thus rendering the agreement binding and enforceable between the Parties. The Final Award issued on October 9, 2025, is properly supported. This motion is made within one (1) year of the date that the Final Award was issued. Finally, Defendant does not bring up any grounds to vacate, modify, or correct the award under sections 10 (9 U.S.C. § 10) and 11 (9 U.S.C. § 11) of the FAA.

The Court has reviewed the 30-page Interim Award, the 26-page Ruling on Attorney's Fees and Costs, and the two-page Final Award incorporating the two previous rulings. All of the arbitration rulings and awards are detailed, seemingly impartial, and otherwise facially valid. Parties seeking vacatur of an arbitration award have the burden of showing the arbitrator committed error, and such parties must show they were prejudiced by the alleged corruption, fraud or undue means. (*Comerica Bank v. Howsam* (2012) 208 Cal.App.4th 790, 791.)

Defendant's Jurisdictional Objection Rather than an Opposition

On November 18, 2025, the Parties attended a Case Management Conference where Defendant's counsel informed the Court that Defendant's position was that the Court did not have jurisdiction because judgment had been entered as to Collins's claims and that Defendant had filed a petition in Los Angeles County to correct and vacate the Arbitration Award. (Reply Sabourian Decl. ¶ 14; Exhibit D at 4:3-27.) In response, the Court stated that the hearing on Plaintiff's Motion to Confirm would stay on calendar and that Defendant needed to file a motion. (Id.; Exhibit D at 8:27-9:2.)

On February 24, 2026, the Parties attended a Case Management Conference where the Court reminded Defendant's counsel that Defendant needed to file an opposition to Plaintiff's Motion to Confirm. (Reply Sabourian Decl. ¶ 15; Exhibit E at 3:20-4:2.) The Court also specifically informed Defendant that filing a jurisdictional objection "is not the proper way to resolve the dispute about what the meaning of the prior judgment says." (Id.; Exhibit E at 9:6-13.) Moreover, the Court informed Defendant that the proper way to address Defendant's jurisdictional concerns was for Defendant to file a motion. (Id.)

Defendant Hasa did not file a motion to resolve the dispute about the meaning of the prior judgment, did not file a motion challenging jurisdiction, nor filed an opposition to the instant motion to confirm the arbitration award. This failure to file either motions or opposition was despite two CMC's going back five months from the day of this hearing. Defendant relies on two sentences in its jurisdictional objection requesting the right to oppose the motion on the merits.

Defendant Hasa's stance that filing an opposition would hurt its jurisdictional argument could have been avoided by filing a separate motion challenging jurisdiction and moving ex-parte to shorten time. Defendant Hasa affirmatively chose not to file a substantive opposition to Plaintiff Guerrero's motion to confirm the arbitration award and instead filed a jurisdictional objection.

Conclusion

For the reasons analyzed above, **Plaintiff Alex Guerrero's motion to confirm final arbitration award is granted.**

12. 9:00 AM CASE NUMBER: MSC21-00403

CASE NAME: RAMOS/CHOLICO VS CB ENTERPRISES, INC.

***HEARING ON MOTION IN RE: FINAL APPROVAL SET BY THE COURTROOM**

FILED BY:

TENTATIVE RULING:

Plaintiff Maria Velez Ramos and Yuliana Cholico move for final approval of their class action and PAGA settlement with defendant California Burrito #11, Inc, (CB). The Court granted preliminary approval on December 15, 2025

A. Background and Settlement Terms

The original complaint was filed March 2, 2021, raising claims under PAGA and a class action on behalf of non-exempt employees alleging that defendant violated the Labor Code in various ways, including but not limited to failure to pay meal and rest breaks, minimum wages, and overtime wages.

The settlement would create a gross settlement fund of \$240,000. The class representative payment to each plaintiff would be \$7,500. Counsel's attorney's fees would be \$80,000 (30% of the settlement). Litigation costs would not exceed \$35,000. The settlement administrator (Phoenix) would cap its costs at \$8,000. PAGA penalties would be \$12,000, resulting in a payment of \$9,875 to the LWDA. The fund is non-reversionary. Based on the estimated class size of 2,914, the average net payment for each class member is approximately \$412.

The proposed settlement would certify a class of all current and former non-exempt employees employed by Defendant during the class period. The settlement contains release language covering all “all claims . . . or causes of action which were alleged or which could have been alleged based on the factual allegations in the Class Action complaint arising during the class period” (Settlement, Par. 9ee.) Under recent appellate authority, the limitation to those claims with the “same factual predicate” as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 [“A court cannot release claims that are outside the scope of the allegations of the complaint.” “Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint’ is impermissible.” (*Id.*, quoting *Marshall v. Northrop Grumman Corp.* (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

The class members will not be required to file a claim. Class members may object or opt out of the settlement. (Class members cannot opt out of the PAGA portion of the settlement.) Funds would be apportioned to class members based on the number of workweeks worked during the class period.

Various prescribed follow-up steps have been taken with respect to mail that is returned as undeliverable. Uncashed checks would be cancelled and the amounts would be would be provided to the State Controller’s Unclaimed Property Fund.

Informal discovery was undertaken prior to mediation. The matter settled after extensive arms-length negotiations, with included a mediation session with an experienced mediator.

Counsel also has provided a summary of a quantitative analysis of the case, and how the settlement compares to the potential value of the case, after allowing for various risks and contingencies. Part of the analysis involved an investigation into the Defendant’s financial condition. Counsel estimated the maximum potential damages as \$1,018,915.98. A substantial portion of that is penalties to discharged and quitting employees (\$358,610.01), with these penalties being derivative of the other claims.

The LWDA was notified of the settlement.

Since the Court granted preliminary approval, notice was sent to all 93 class members. No objections have been received. No requests for exclusion have been received. Four notices were returned as undeliverable, with follow-up procedures resulting in new mailings to all four. No notices remain undeliverable.

Counsel now specifies their litigation costs at \$32,423.80.

B. Legal Standards

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.”

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair,

reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. Attorney fees, costs, and representative payment

Plaintiffs seek 30% of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.)

Counsel have provided an estimate of their lodestar fee. They estimate that they have expended 763.80 hours to date, with rates ranging from \$600 to \$1150 per hour. This results in a lodestar of \$553,110, yielding a negative multiplier. The Court finds the rates sought to be reasonable.

The Court agrees that the lodestar cross check “does not override the trial court’s primary determination of the fee as a percentage of the common fund and thus does not impose an absolute maximum or minimum on the potential fee award.” (*Lafitte, supra*, 1 Cal.5th at 505.) But the Court has a fiduciary duty to the class, and in some cases that duty requires that the fee be reduced.

A number of issues must be considered here. This case will receive a truncated analysis, as the lodestar cross-check reveals a significant downward disparity between the amount billed and the amount recovered. Even if a multiplier were not appropriate, and the rates and hours were unreasonable, the amount of attorneys’ fees sought is 14% of what was billed. In reviewing the settlement as a whole, the Court finds this reasonable.

The Court awards fees of \$80,000/

The litigation costs are reasonable and are approved.

As to the requested representative payment of \$7,500, Plaintiffs attest that they participated

in the litigation, took the risk of liability for costs, and that their participation could hurt their chances of being hired by other employers. They estimate their time spent at 45 and 55 hours. Based on the criteria for evaluation of such requests set forth in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807 (particularly the size of the award relative to the recovery), the request is approved.

D. Discussion and Conclusion

The moving papers sufficiently establish that the proposed settlement is fair, reasonable, and adequate to justify final approval.

The motion is granted. Counsel are directed to prepare an order reflecting this tentative ruling, and the other findings in the previously submitted proposed order and a separate judgment. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented, the date for which should be obtained through consultation with the Department clerk. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

13. 9:00 AM CASE NUMBER: MSC21-00588

CASE NAME: SHARMA VS. ARS ALEUT CONSTRUCTION

***HEARING ON MOTION IN RE: DEFENDANT NORCAL GOOD FAITH SETTLEMENT**

FILED BY:

TENTATIVE RULING:

Defendants, NorCal Rental Group, LLC ("NorCal") as well as Peterson Holding Company, Peterson Tractor Company DBA Peterson-Cat, and Sitech Norcal, Inc (collectively, "Peterson Defendants") separately move for determination of a good faith settlement. Plaintiff Shalini Sharma, has joined in both motions. The motions are **granted**. The Court finds that the settlement was made in good faith, as discussed below.

I. Factual Background

In this construction injury case, the plaintiff, Shalini Sharma, worked as a heavy equipment operator when she was injured by a large piece of glass that fell out of the cab door of the rented grader she was operating. The grader was rented from defendant American Equipment Company, Inc. ("AMECO"), who had procured it from NorCal, who, in turn, procured it from the Peterson Defendants.

In March 2021, plaintiff filed this suit to recover for her injuries. The currently operative complaint is the Third Amended Complaint, filed on July 26, 2022. The causes of action alleged in that complaint are (1) Negligence – Products Liability; (2) Strict Liability – Products Liability; (3) Breach of Implied Warranty; and (4) Negligence. Several cross-complaints were filed, including claims for equitable indemnity. Plaintiff's employer, ARS Aleut Construction, LLC, has been dismissed from the lawsuit based on a settlement of her workers' compensation claim for \$38,000.

A jury trial is currently set for July 6, 2026, but was scheduled to start on May 11th at the time these motions were made.

After a JAMS mediation on March 17, 2026, Norcal and the Peterson Defendants entered into a settlement with plaintiff on the condition that the settlement be determined to be in good faith. The present motions, pursuant to Code of Civil Procedure section 877.6(a)(1) (Norcal's motion erroneously refers to subdivision (a)(2)), seeks an order that determines the settlement was in good faith.

The motions explain that Norcal and Peterson Defendants will pay plaintiff \$925,000 in exchange for a dismissal with prejudice of plaintiff's complaint and a release of claims as to settling parties. (See Norcal Memorandum of Points and Authorities in Support of Motion, 7:17-21; see also Peterson Defendants' Memorandum of Points and Authorities in Support of Motion, 4:23-5:9.) The motions are supported by declarations from counsel. Norcal's counsel, Michael A. Walker, states, in relevant part, "NorCal, the Peterson Defendants, and Plaintiff reached a settlement agreement on or about March 24, 2026 in the sum of \$925,000, with each party to bear their own fees and costs." (Walker Decl., ¶18.) Walker goes on to state that Norcal's insurance carrier will pay \$462,500 (half) of the total. (*Ibid.*) The papers submitted by Peterson Defendants support this description.

Plaintiff has filed joinders in both motions, which are **granted**.

II. Standard

A determination by a court that a settlement was made in good faith bars any other joint tortfeasor or co-obligor from asserting further claims against the settling party for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault. (Code Civ. Proc. §877.6(c).)

The criteria for the determination of a good faith settlement were originally set out by the California Supreme Court in *Tech-Bilt, Inc. v. Woodward-Clyde & Assoc.* (1985) 38 Cal.3d 488 ("*Tech-Bilt*"). *Tech-Bilt* identifies six nonexclusive factors for making a determination of good faith settlement:

- (1) a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability;
- (2) the amount paid in settlement;
- (3) the allocation of settlement proceeds among plaintiffs;
- (4) the recognition that a settlor should pay less in settlement than he would if he were found liable after a trial;
- (5) the financial conditions and insurance limits of settling defendants; and,
- (6) the existence of fraud, collusion, or tortious conduct aimed to injure the interests of nonsettling defendants.

(*Tech-Bilt, supra*, 38 Cal.3d at p. 499.)

Once the settling party has demonstrated that a settlement exists, a presumption of good faith exists. A party asserting a lack of good faith bears the burden of proof on that issue. (Code Civ. Proc. § 877(d).) The party asserting lack of good faith must demonstrate that the settlement is "so far out of the ballpark in relation to [the *Tech-Bilt* factors] as to be inconsistent with the equitable objectives of the statute." (*Tech-Bilt, supra*, 38 Cal.3d at pp. 499-500.)

Ultimately, for the Court to grant the motion, the "settlement figure must not be grossly

disproportionate to what a reasonable person, at the time of the settlement, would estimate the settling defendant's liability to be." (*Tech-Bilt, supra*, at p. 499.) Trial courts have "broad discretion in determining whether a settlement was entered in good faith and within the *Tech-Bilt* ballpark, and in allocating potential liability and exposure between or among joint tortfeasors." (*Norco Delivery Service, Inc. v. Owens-Corning Fiberglass, Inc.* (1998) 64 Cal.App.4th 955, 962.)

III. Evidentiary Objections

In reply to the opposition papers, plaintiff (who joins in the motion) objects to statements in the Declaration of Michael T. Boardman. Norcal, without submitting any separate document listing its "objections," also disputes that the evidence should be considered. (See Norcal Reply 9:20-10:13.) The challenged statements reflect communications between counsel on the subject of liability and settlement. Plaintiff objects to the statements based on relevance, the mediation privilege, and hearsay. Norcal argues the statements are "objectionable and unfounded." The objections are **overruled**.

IV. Analysis

A settling party's burden in applying for a good faith determination is to prove there has been a settlement. (*Fisher v. Superior Court* (1980) 103 Cal.App.3d 434, 447; see also, *City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251, 1261-1262.) Norcal and Peterson Defendants meet this burden through counsel declarations outlining the terms of the settlement and, on reply, providing a copy. Because moving parties meet this burden, the burden shifts to any opposing party to show that the settlement was not made in good faith. (*Fisher, supra*, 103 Cal.App.3d at 447.)

AMECO fails to show bad faith, as required to defeat the motions. (Code Civ. Proc., § 877.6, subd. (d).) AMECO first argues that the Court should not have shortened time for hearing on these motions based on the procedural posture at the time the order was entered (no motions had yet been filed). Moving parties defend the procedural steps taken due to the impending jury trial, further pointing out that the lack of opposition to the applications for shortened time. The Court notes AMECO did file substantive oppositions to both motions. Any irregularities on this record are not a reason to deny the motions.

AMECO also argues the proposed settlement is outside the *Tech-Bilt* ballpark, but provides no evidentiary support for this claim. As it argued in the motions for summary judgment, AMECO asserts it acted only as a "middle-man" and was thus not responsible for the grader's condition. (Declarations of Michael T. Boardman in Support of Oppositions, hereinafter "Boardman Decl.," ¶13.) AMECO presents evidence that plaintiff seeks damages "in excess of" \$5 million and contends that there is \$11 million in insurance coverage available to the moving parties. (Memorandum of Points and Authorities in Support of Opposition to Peterson Defendants' Motion, 14:26-15:1.) The Court notes that a claim is not tantamount to actual recovery and, pursuant to *Tech-Bilt*, "a settlor should pay less in settlement than he would if he were found liable after a trial." Norcal presents evidence that plaintiff's claim is worth less than she would actually be able to show at trial since she incurs no significant wage loss. Plaintiff may have elected to let NorCal and the Peterson Defendants settle for less than she could seek at trial, but where these defendants are covering nearly 20% of her claimed damages, and where the \$5 million claim would not exhaust the purported insurance limits anyway, this sort of decision is not for the Court to second-guess. Whether plaintiff attempted to settle with AMECO for less in November (\$340,000) than she sought in March (\$5 million) is not relevant. The posture of litigants changes as facts develop and trial nears.

The Court agrees with the moving parties that the sum is not insubstantial and, because

liability is difficult to predict, splitting equally between NorCal and the Peterson Defendants is reasonable. As for the express indemnity discussion (see Boardman Decl., ¶4), it is irrelevant to the determination to be made here. Should AMECO show a contract for express indemnity at trial, AMECO would be entitled to express indemnification. The scope of what sort of claims are extinguished by way of granting this motion is limited to the types of claims listed in Code of Civil Procedure, section 877.6, subd. (c). "It is well-established a good faith settlement would not preclude an indemnity action based on an express indemnity agreement. " (*Willdan v. Sialic Contractors Corp.* (2007) 158 Cal.App.4th 47, 55, citing *Bay Development, Ltd. v. Superior Court* (1990) 50 Cal.3d 1012, 1019, 1032.)

The Court disagrees with AMECO's assertion that the settlement is the result of collusion. AMECO's basis for the assertion includes that it was not included in the mediation, but the evidence suggests it declined to attend. AMECO also indicates it was put at a disadvantage in discovery, but as explained in the replies, AMECO's chosen discovery strategy relied on the efforts of others and this choice is not a reason to deny the motions. The discovery strategies were part of the cost calculations necessary in navigating litigation on the brink of trial.

For the above reasons, the Court finds this settlement was entered into in good faith and any claims covered by Code of Civil Procedure section 877.6, subdivision (c) (including equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault) are dismissed.

14. 9:00 AM CASE NUMBER: MSC21-00588
CASE NAME: SHARMA VS. ARS ALEUT CONSTRUCTION
***HEARING ON MOTION IN RE: GOOD FAITH SETTLEMENT BTWN DEFS PETERSON AND SITECH**
NORCAL AND PLTF SHARMA
FILED BY: PETERSON TRACTOR CO.
TENTATIVE RULING:

Please see Line 13.

15. 9:00 AM CASE NUMBER: MSC21-00588
CASE NAME: SHARMA VS. ARS ALEUT CONSTRUCTION
HEARING IN RE: JOINDER WITH MOTIONS FOR GOOD FAITH SETTLEMENT FILED BY NORCAL
RENTAL GROUP, PETERSON TRACTOR, PETERSON HOLDING, AND SITECH NORCAL
FILED BY: SHARMA, SHALINI
TENTATIVE RULING:

Please see Line 13.

16. 9:00 AM CASE NUMBER: MSC21-02415
CASE NAME: MEJIA, ET AL. VS HERNANDEZ, ET AL.

***HEARING ON MINOR'S COMPROMISE RE JALIZA HENRIQUEZ**

FILED BY: HENRIQUEZ, JALIZA

TENTATIVE RULING:

Summary

On behalf of Plaintiff Jaliza Henriquez, her Guardian Ad Litem Roxana Henriquez Mejia filed on December 12, 2025 a Petition for Approval of Compromise of Minor Jaliza Henriquez's ("Minor") Claim Against Defendants ("Petition"). For the reasons stated below, the Court **grants** the Petition

Background

On November 29, 2019, Plaintiff Roxana Henriquez was involved in a collision with Defendant Oliver de Leon Hernandez at approximately 30-35 miles per hour. Minor Henriquez was in the vehicle and sustained multiple physical injuries, including pain to the right arm, neck, and the lower and mid-back regions. She received chiropractic care. The Petition avers that Minor has recovered completely.

At this time, the insurers have offered \$39,044.83 collectively to Minor.¹ There are the following deductions: (1) \$1,604.42 for medical expenses; (2) \$15,617.93 for attorneys' fees; and (3) \$450 in costs. The remainder of \$21,372.48 is due to claimant to be placed in a blocked account.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor's Claim lodged on April 23, 2026.

17. 9:00 AM CASE NUMBER: N25-2223

CASE NAME: CLAIM OF: JADEN SELHA JADEN SELHA

***HEARING ON MINOR'S COMPROMISE**

FILED BY:

TENTATIVE RULING:

Summary

Petitioner Zeehan Selha's Petition for Approval of Compromise of Minor Jaden Selha's ("Minor") Claim ("Petition"), filed on November 5, 2025, is granted, as set forth below.

Background

On November 5, 2025, Petitioner Zeehan Selha, parent of Jaden Selha, filed the Petition through counsel Jim W. Yu, to compromise the claim that Minor had Sophia Jones related a vehicle versus

¹ The other two Plaintiffs will take \$6,998.96 (Roxana Henriquez Mejia) and \$1,260.74 (Daniela Henriquez) from separate funds.

bicycle accident on April 11, 2024. In that accident, Minor sustained injuries including a concussion, facial and body abrasions, soft tissue neck injury, and ligament tear to right knee. Petitioner represents that Minor received surgical treatment and physical therapy. Petitioner represents that Minor has *not* recovered completely, retaining scarring from the injuries for which counsel acquired an estimate for treatment. Counsel negotiated with the insurer a settlement of \$400,000, of which \$230,445.46 is to be paid to Petitioner behalf of Minor to be placed into an annuity. The deductions are as follows: (1) \$63,752.62 for medical expenses; (2) \$5,801.92 costs; and (3) \$100,000 for attorneys' fees (25% of the recovery). Petitioner prepared a proposed order and a proposed annuity.

Ruling

After careful examination of the Petition, declarations, and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor's Claim lodged on November 5, 2025.

18. 9:00 AM CASE NUMBER: N26-0057
CASE NAME: PETITION OF:TOTAL LENDER SOLUTIONS, INC.
HEARING IN RE: PETITION AND DECLARATION REGARDING UNRESOLVED CLAIMS AND DEPOSIT OF
UNDISTRIBUTED SURPLUS PROCEEDS OF TRUSTEE'S SALE
FILED BY:
TENTATIVE RULING:

Petitioner Total Lender Solutions filed a Petition regarding the proceeds of a Trustee's Sale for the property of Lerline Gandy. On January 15, 2026, this Court approved the Petition and ordered the funds deposited for distribution. On March 24, 2026, Frances Gandy, Lerline Gandy's sole heir, filed a Claim to all of Surplus Funds Deposited with Clerk per Order of Jan 9 2026. It appears that Frances Gandy is arguing that the fees (\$6,658.86) and costs (\$435) awarded to counsel for Total Lender Solutions pursuant to the Court's January 14 order were improvidently granted because Total Lending Solutions unnecessarily filed this action. The Court has received no opposition to this filing; nor, however, has the Court received proof of service of the filing. The filing appears to be a motion for reconsideration, but it was filed outside of the proper time for such a motion, and without explanation. Given all of these concerned, the request is **denied**.

Courtroom Clerk's Calendar
Add On

19. 9:00 AM CASE NUMBER: C25-02439
CASE NAME: CHANEL READER-JONES VS. MARJORIE RINKER
*FURTHER CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

If either party challenges the tentative ruling at Line 20, there will be a Further Case Management Conference. If the tentative ruling stands, the Court sets a post-arbitration status conference for **Monday, December 14, 2026 at 8:30 a.m.** The parties are ordered to file a joint statement with an update on the arbitration at least seven calendar days in advance of the hearing.

Law & Motion
Add On

20. 9:00 AM CASE NUMBER: C25-02439
CASE NAME: CHANEL READER-JONES VS. MARJORIE RINKER
*MOTION/PETITION TO COMPEL ARBITRATION AND DISMISS OR STAY PROCEEDINGS FILED BY:
RINKER, MARJORIE

FILED BY:

TENTATIVE RULING:

Defendants' motion to compel arbitration is **granted**. The motion to dismiss is **denied**. The action is **stayed** pending the outcome of arbitration. The Court sets a post-arbitration status conference for **Monday, December 14, 2026 at 8:30 a.m.** The parties are ordered to file a joint statement with an update on the arbitration at least seven calendar days in advance of the hearing.

Background

This action arises from Plaintiff Chanel Sanaa Reader-Jones's employment with Defendants Macy's Inc., Macy's Retail Holdings LLC, Macy's Systems and Technology, Inc., and Macy's Sun Valley Shopping Center (collectively, "Entity Defendants") at the Sunvalley Mall Macy's store in Concord from October 2022 to March 2024. Plaintiff alleges the following causes of action against the Entity Defendants and individual defendants Marjorie Rinker, Jashay Bingham Cherry, Scott Kennell, and Heather Meredith ("Individual Defendants"): (1) discrimination (FEHA); (2) hostile work environment harassment (FEHA); (3) retaliation (FEHA); (4) failure to provide reasonable accommodation (FEHA); (5) failure to engage in the interactive process (FEHA); (6) failure to prevent discrimination, harassment, or retaliation (FEHA); (7) breach of oral contract not to terminate employment without good cause; (8) breach of implied-in-fact contract not to terminate employment without good cause; (9) negligent hiring, supervision, and retention; (10) wrongful termination in violation of public policy; (11) violation of California Labor Code § 1102.5; (12) intentional infliction of emotional distress; and (13) violation of

the California Family Rights Act.

On December 24, 2025, the Entity Defendants (with the exception of Macy's Sun Valley Shopping Center, which Defendants represent does not exist as a legal entity) and the Individual Defendants filed this motion to compel arbitration and to dismiss or stay the action. The motion is supported by the Declarations of Cynthia Ripak, Senior Manager of the Office of Solutions InSTORE for Macy's, Inc., and Nicolas Moreau, Senior Director of Human Resources Technology, Data and Analytics for Macy's Corporate Services, LLC.

Defendants' declarants state that In 2003, Macy's, Inc. developed and implemented the Solutions InSTORE Program, an internal early dispute resolution program. (Ripak Decl. ¶ 5.) The Program is structured in four steps. In Step 1, "Open Door," the employee is encouraged to bring her concerns to a supervisor or member of local management. In Step 2, the employee submits a written request for review of the Step 1 decision, and a human resources professional not involved in the underlying decision conducts an independent investigation. In Step 3, the employee submits a written request for reconsideration of the Step 2 decision to the Office of Solutions InSTORE. In Step 4, employees who do not return an opt-out form within the prescribed time period agree to arbitrate their claims that fall within the scope of the arbitration agreement. Step 4 arbitration is administered by the American Arbitration Association. (Ripak Decl. ¶ 9.) Employees are not required to go through Steps 1, 2, or 3 before proceeding to Step 4 Arbitration. (Ripak Decl. ¶¶ 9, 11.)

By accepting or continuing employment, employees agree to arbitration under the Solutions InSTORE Program. (Ripak Decl. ¶ 8 and Exh. A (Plan Document).) However, an employee can opt out of Step 4 Arbitration by completing an Election Form and mailing it to the Office of Solutions InSTORE at the address listed on the Form within 30 days of hire. (Ripak Decl. ¶¶ 9, 22 and Exh. A.) The Program prohibits retaliation against employees who use or opt out of Step 4 Arbitration. (Ripak Decl. ¶ 12 and Exh. A (Brochure) at p. 4.) Additionally, an employee's election is kept confidential, and no one in the employee's local workplace has access to the election. (Ripak Decl. ¶ 13.)

The Plan Document describes the procedures and protections that apply to Step 4 Arbitration. An employee initiating arbitration pays a filing fee of one day's pay or \$125, whichever is less, and Macy's pays the other costs to access the arbitral forum. (Ripak Decl. ¶ 15(a) and Exh. A (Plan Document) at pp. 16-17.) If the employee is represented by counsel at the arbitration, Macy's reimburses out-of-pocket legal fees up to \$2,500 over each rolling 12-month period; if the employee is not represented, Macy's reimburses incidental costs up to \$500 over the same period. (*Id.* at p. 17.) The Plan Document provides that if an employee is required to arbitrate claims against Macy's, Macy's is likewise required to resolve any claims it has against the employee through arbitration. (Ripak Decl. ¶ 14 and Exh. A (Plan Document) at p. 6.) The arbitration allows twenty interrogatories per side (each of which may include a document request), three depositions per side, the employee's right to request all documents in her personnel file, but gives the arbitrator discretion to allow additional discovery. (Ripak Decl. ¶ 15(d) and Ex. A (Plan Document) at pp. 10-12.) The arbitrator has the same authority as a judge to grant any available relief, the statutes of limitation in court apply equally in arbitration, and the arbitrator must issue a written decision. (Ripak Decl. ¶ 15(e), (g) and Exh. A (Plan Document) at pp. 8, 16, 18.)

The Plan Document covers, with limited exceptions, all employment-related disputes, controversies, and claims arising under federal, state, or local law. (Ripak Decl. ¶ 14 and Exh. A (Plan Document) at

pp. 6-7.) The arbitration agreement is subject to the Federal Arbitration Act. (*Id.* at p. 18.) The agreement also requires arbitration of claims against Macy's employees, officers, or other agents. (*Id.* at p. 6.)

At the outset of her employment, Plaintiff received notice of the Solutions InSTORE Program, the arbitration component of the Program (Step 4-Arbitration), and her right to opt out of arbitration by submitting an Election Form within 30 days of hire. (Ripak Decl. ¶ 17.) Macy's used various means to notify Plaintiff of the InSTORE Program and her opt-out right: InSTORE New Hire Acknowledgement form, the Plan Document, the New Hire Brochure, the Election Form, the InSTORE Program video, and the InSTORE website. (Ripak Decl. ¶ 17 and Exs. A-D.)

Also at the outset of her employment, Plaintiff viewed and electronically signed the Solutions InSTORE New Hire Acknowledgement. (Moreau Decl. ¶¶ 8, 12 and Ex. B; Ripak Decl. Ex. B.) By electronically signing the Acknowledgement, Plaintiff acknowledged receipt of the Solutions InSTORE Plan Document and other materials, and that she had 30 days from her date of hire to review the Solutions InSTORE materials and mail a completed Election Form to the Office of Solutions InSTORE if she did not wish to agree to Step 4 Arbitration. (Moreau Decl. ¶ 9.) The Acknowledgement Plaintiff signed states, in relevant part, that she had received the Solutions InSTORE Brochure, Plan Document, and Election Form; that she had been instructed to review the materials carefully; that she had 30 days from her date of hire to postmark and mail the Election Form to the Office of Solutions InSTORE if she wanted to opt out of Step 4 Arbitration; that she would be automatically enrolled in the Solutions InSTORE Program and agree to final and binding individual arbitration from her date of hire unless she took the steps required to opt out within 30 days; that any disputes or claims relating to her employment, other than those expressly excluded from arbitration in the Plan Document, would be resolved in arbitration rather than by a judge or jury; that the only way to opt out of Step 4 Arbitration was by mailing the Election Form to the Office of Solutions InSTORE within 30 days of her date of hire; and that her decision would be kept confidential and would not affect her job. (Moreau Decl. Ex. B; Ripak Decl. Ex. B.)

The opt-out Election Form, entitled "Early Dispute Resolution Program Election Form," was contained in the Brochure provided to Plaintiff. (Ripak Decl. ¶ 20 and Exh. A, Bates 027.) The Form also states that employees must act within 30 days of their hire date to opt out of Step 4 Arbitration and that, if they do not, they will be agreeing to Step 4 Arbitration. (*Id.*) The Form states that the employee must mail a completed Election Form to the Office of Solutions InSTORE at the listed mailing address to opt out of arbitration. (*Id.*)

Plaintiff viewed the Solutions InSTORE Program video on October 21, 2022. (Moreau Decl. ¶ 16 and Exh. F.) The video explains the four steps of the Program, including arbitration and the right to opt out of arbitration. (Ripak Decl. ¶ 24 and Exs. C, D.) Plaintiff did not return an Election Form. (Ripak Decl. ¶¶ 26-29.)

Plaintiff opposes the motion to compel. Plaintiff does not dispute that all of her claims fall within the scope of the arbitration agreement if it is enforceable. Instead, she argues that Defendants failed to authenticate her electronic signature on the arbitration agreement, she did not knowingly consent to arbitration, and the agreement is procedurally and substantively unconscionable.

Legal Standards

Both the California Arbitration Act (CAA) and the Federal Arbitration Act (FAA) reflect “a strong public policy of enforcing arbitration agreements.” (*Weiler v. Marcus & Millichap Real Estate Investment Services, Inc.* (2018) 22 Cal.App.5th 970, 979.) “Thus, a court generally must compel arbitration in accordance with the agreement when requested by one of the parties. (Code Civ. Proc., § 1281.2; 9 U.S.C. § 2.)” (*Ibid.*)

“The FAA applies to arbitration clauses in contracts involving interstate commerce and ‘was designed ‘to overrule the judiciary’s long-standing refusal to enforce agreements to arbitrate,’ [citation], and to place such agreements “‘upon the same footing as other contracts.’” [Citation.]” (*Rodriguez v. American Technologies, Inc.* (2006) 136 Cal.App.4th 1110, 1117 (Rodriguez).) Section 2 of the FAA states that “[a] written provision in ... a contract ... to settle by arbitration a controversy thereafter arising out of such contract ... shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.” (9 U.S.C. § 2.)

The CAA “echoing the FAA’s language and its policy favoring arbitration, likewise provides that a written arbitration agreement ‘is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract.’” (*Rodriguez, supra*, 136 Cal.App.4th at p. 1117.)

“The court’s role under the [FAA] is ... limited to determining (1) whether a valid agreement to arbitrate exists and, if it does, (2) whether the agreement encompasses the dispute at issue.” (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) “If the response is affirmative on both counts, then the Act requires the court to enforce the arbitration agreement in accordance with its terms.” (*Ibid.*)

But even when the FAA applies, “[i]n determining the rights of parties to enforce an arbitration agreement within the FAA’s scope, courts apply state contract law while giving due regard to the federal policy favoring arbitration.” (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.) Under California law, “[t]he petitioner [seeking to compel arbitration] bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, while a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense.” (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842.)

Discussion

A. The Existence of an Agreement

If a party to a civil action asks the court to compel arbitration of the pending claim, the court must determine in a summary proceeding whether an “agreement to arbitrate the controversy exists.” (See Code Civ. Proc., §§ 1281.2, 1290.2; *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 412–413.) “Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. If the party opposing the petition raises a defense to enforcement ... that party bears the burden of producing evidence of, and proving by a preponderance of the evidence, any fact necessary to the defense.” (*Rosenthal, supra*, at p. 413.)

The parties here dispute both the existence of an agreement (the authenticity of plaintiff's signature) and a defense to its enforcement (plaintiff's claim that it is unconscionable (*Fisher v. MoneyGram International Inc.* (2021) 66 Cal.App.5th 1084, 1094 ["unconscionability is a defense to enforcement of a contract"].) On the defense of unconscionability, plaintiff bears the burden of proof. (*Ibid.*) As to the existence of an agreement, Defendants bear the ultimate burden of proof, but the court resolves the dispute using a three-step burden-shifting process. (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1056.)

The arbitration proponent must first recite verbatim, or provide a copy of, the alleged agreement. (Cal. Rules of Court, rule 3.1330; *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 219.) A movant can bear this initial burden "by attaching a copy of the arbitration agreement purportedly bearing the opposing party's signature." (*Espejo, supra*, 246 Cal.App.4th at p. 1060.) At this step, a movant need not "follow the normal procedures of document authentication" and need only "allege the existence of an agreement and support the allegation as provided in rule [3.1330]." (*Condee, supra*, at pp. 218, 219.)

If the movant bears its initial burden, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement's existence. To bear this burden, the arbitration opponent must offer admissible evidence creating a factual dispute as to the authenticity of their signature. The opponent need not prove that his or her purported signature is not authentic, but must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent, who retains the ultimate burden of proving, by a preponderance of the evidence, the authenticity of the signature. (*Espejo, supra*, 246 Cal.App.4th at p. 1060.)

Defendants met their initial burden by attaching to the motion a copy of the arbitration agreement purporting to contain Plaintiff's electronic signature. (*Id.*) Plaintiff's declaration, however, does not raise a factual dispute as to the authenticity of the electronic signature because Plaintiff does not deny that the signature is her own. To the contrary, she affirmatively states that she was "forced to acknowledge the agreement in order to complete [her] onboarding." (Reader-Jones Decl. ¶ 5.)

Even if Plaintiff had stated she could not recall signing electronically, Defendants would have met their burden of proving the authenticity of the signature through the Moreau Declaration. Moreau states that after signing the E-Signature Disclosure and Consent form, the new hire may access, review, and sign the Solutions InSTORE New Hire Acknowledgement. (Moreau Decl. ¶ 8.) The system requires the new hire to view the document before allowing her to enter her electronic signature, and the new hire must then enter her name, email address, and date of birth (MMDDYYYY) before clicking "complete." (*Id.*) The name and date of birth as entered are validated against the data maintained in Macy's company database; if the name and date of birth do not match exactly, the new hire receives an error message and is prompted to complete the e-signature information again. (*Id.* ¶ 10.) The Solutions InSTORE New Hire Acknowledgement is the only form during onboarding that requires the new hire to enter her date of birth and to have it validated against the company database. (*Id.* ¶ 14.) Once the signature is saved, neither Macy's nor its divisions or subsidiaries can change it, and only a select few corporate employees can access the electronic signature database. (*Id.* ¶ 11.) These security procedures would be sufficient to establish that the signature was Plaintiff's act under Civil Code section 1633.9(a) (an electronic signature is "attributable to a person if it was the act of the person," and "[t]he act of the person may be shown in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or

electronic signature was attributable").

Plaintiff's claim that she did not understand the arbitration agreement does not defeat contract formation. A party who signs a written agreement is bound by its terms regardless of whether she read it or was aware of its arbitration provision. (*Iyere v. Wise Auto Group* (2023) 87 Cal. App. 5th 747, 759.) Defendants have met their burden of proving the existence of a valid agreement to arbitrate.

B. Unconscionable Agreement

"If the court as a matter of law finds the contract or any clause of the contract to have been unconscionable at the time it was made the court may refuse to enforce the contract, or it may enforce the remainder of the contract without the unconscionable clause, or it may so limit the application of any unconscionable clause as to avoid any unconscionable result." (Civ. Code, § 1670.5(a); *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 122.) To be unenforceable, a contract must be both procedurally and substantively unconscionable, but the elements need not be present in the same degree. The analysis employs a sliding scale: "... the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." (*Ibid.*)

1. Procedural Unconscionability

Procedural unconscionability concerns the manner in which the contract was negotiated and the parties' circumstances at that time. It focuses on the factors of oppression or surprise. (*Kinney v. United HealthCare Services, Inc.* (1999) 70 Cal.App.4th 1322, 1329.) Adhesive contracts create a "modest degree of procedural unconscionability." (*Nguyen v. Applied Medical Resources Corp.* (2016) 4 Cal.App.5th 232, 248.)

Plaintiff argues that the Solutions InSTORE arbitration agreement is adhesive because it was presented on a "take-it-or-leave-it" basis and she could not proceed with her onboarding paperwork without acknowledging the program. (Reader-Jones Decl. ¶ 5.) Plaintiff states that she was not told she could negotiate the agreement or given the opportunity to consult with counsel. (*Id.* at ¶ 8.) Plaintiff points to Moreau's declaration statement that the Macy's Solutions InSTORE New Hire Acknowledgment "must be signed by all employees at time of hire." (Opp., p. 9:17-19.)

The adhesive nature of the agreement in this case is sufficient to establish some level of procedural unconscionability. (See *Swain v. LaserAway Medical Group, Inc.* (2020) 57 Cal.App.5th 59, 69 [an opt out provision does not insulate an arbitration agreement from a finding of procedural unconscionability].) The fact that Plaintiff did not have attorney review and was a 21-year-old new hire without a college degree also weighs in favor of finding some procedural unconscionability, but on balance the procedural unconscionability is minimal. Plaintiff is therefore required to show a strong degree of substantive unconscionability for the agreement to be unenforceable.

2. Substantive Unconscionability

"Substantive unconscionability pertains to the fairness of an agreement's actual terms and to assessments of whether they are overly harsh or one-sided. [Citations.] A contract term is not substantively unconscionable when it merely gives one side a greater benefit; rather, the term must

be 'so one-sided as to "shock the conscience."' (Pinnacle, supra, 55 Cal.4th at p. 246.)

Plaintiff identifies five features of the Solutions InSTORE arbitration agreement that she contends are substantively unconscionable: (1) a limitation on damages and attorney fees; (2) a lack of mutuality; (3) an indefinite duration; (4) unreasonable restrictions on discovery; and (5) a confidentiality provision. As explained below, the Court agrees with Plaintiff only as to the confidentiality provision.

Plaintiff first argues that the agreement improperly limits the recovery of damages and attorneys' fees. (Opp. pp. 8-9.) Plaintiff has not identified any provision of the agreement that limits the damages or fees the arbitrator may award. To the contrary, the Plan Document states "the Arbitrator shall have the same power and authority as would a judge to grant any relief, including costs and attorney's fees, that a court could grant, in conformance with applicable principles of common, decisional and statutory law in the relevant jurisdiction." (Ripak Decl. ¶ 15(e); Exh. A, Art. 16, p. 18.)

Plaintiff argues that the agreement is one-sided and lacks mutuality because it covers "any dispute arising out of termination" which will almost always be a claim brought by an employee against the employer. Plaintiff relies on *Zullo v. Superior Court* (2011) 197 Cal.App.4th 477, 486 which the Court finds distinguishable. The arbitration policy in *Zullo* "expressly applie[d] to any dispute arising out of the termination" and added "a nonexclusive list of the statutes and laws to which it applie[d], all of which are of equal employment and nondiscrimination laws" under which "[e]mployees bring actions." (*Id.* at p. 486.)

The California Supreme Court in *Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237 considered a similar challenge and rejected it, holding that an agreement covering "any claim or action arising out of or in any way related to the hire, employment, remuneration, separation or termination of Employee" "clearly covers claims an employer might bring as well as those an employee might bring." (*Id.* at 1248-1249.) The Solutions InSTORE Plan Document is structured the same way. It applies to "all employment-related legal disputes, controversies or claims arising out of, or relating to, employment or cessation of employment...." (Ripak Decl. Ex. A at p. 6.) It does not list only employee-side claims as examples. The Plan Document also expressly provides that the agreement is mutual: if an employee is required to arbitrate claims against Macy's, Macy's is likewise required to resolve any claims it has against the employee through arbitration. (Ripak Decl. ¶ 14 and Exh. A (Plan Document) at p. 6.) Thus, the agreement is not one-sided.

Plaintiff argues the agreement is of indefinite duration because it applies to all disputes "arising out of, or relating to, employment or cessation of employment," making the agreement unconscionable under *Cook v. University of Southern California* (2024) 102 Cal.App.5th 312. (See Opp. pp. 9-10.) The argument misreads *Cook*. The agreement in *Cook* required arbitration of "all claims, whether or not arising out of Employee's University employment." (*Id.* at p. 317.) Because the agreement could reach any dispute the plaintiff might have with USC for the rest of her life, including claims having nothing to do with her employment, and could only be terminated by a writing signed by both Cook and the President of USC, it was found to be unconscionable. (*Id.* at pp. 318, 325-326.) *Cook* distinguished agreements like those in *Roman v. Superior Court* (2009) 172 Cal.App.4th 1462 and *Little v. Auto Stiegler, Inc.* (2003) 29 Cal.4th 1064, which were limited to employment-related claims and therefore did not raise the same concern. (*Cook, supra*, 102 Cal.App.5th at pp. 323-324.)

The Solutions InSTORE Plan Document is more like the agreements in *Roman* and *Little*. It covers only

"all employment-related legal disputes, controversies or claims arising out of, or relating to, employment or cessation of employment" and does not apply to claims unrelated to Plaintiff's employment with Macy's. Plaintiff argues that because the agreement covers "cessation of employment" disputes, it must be indefinite in duration. But coverage of post-termination claims is standard in employment arbitration agreements and not the indefinite scope *Cook* identified. Once the statutes of limitation for those employment-related claims run, the agreement has nothing left to operate on.

Plaintiff argues that the agreement places unreasonable constraints on discovery by limiting the parties to three depositions and one set of twenty interrogatories as a default limit. Plaintiff relies on *Kinney v. United Healthcare Servs.* (1999) 70 Cal.App.4th 1322, 1332, which found unconscionable an agreement allowing two depositions and twenty-five document requests, and *Fitz v. NCR Corp.* (2004) 118 Cal.App.4th 702, 716-717, which found unconscionable an agreement allowing only two depositions. (Opp. pp. 6-7.) Plaintiff contends that because the Solutions InSTORE Program allows only one more deposition than *Kinney* and *Fitz* and five fewer interrogatories than *Kinney*, it is "similarly restrictive" and therefore unconscionable.

The Court is not persuaded for two reasons. First, the discovery permitted under the Plan Document is broader than acknowledged. Beyond the three depositions and twenty interrogatories (each of which may include a document request), the Plan Document requires both parties to make mandatory and continuing disclosures of all documents relevant to the claims and defenses in the case, allows the employee to request all documents in her personnel file, and gives the arbitrator discretion to allow additional discovery upon a showing of "appropriate justification." (Ripak Decl. ¶ 15(d) and Ex. A (Plan Document) at pp. 10-12.)

Second, the California Supreme Court recently rejected a similar challenge in *Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478. In *Ramirez*, the arbitration agreement was signed during the employee onboarding process and allowed the parties 90 days to exchange information and take depositions, permitted each party to take up to four depositions, allowed up to 20 interrogatories and 15 requests for documents, and granted the arbitrator the authority to decide all discovery disputes related to the arbitration. (*Id.* at pp. 490–491, 503–504.) The plaintiff argued the arbitration agreement was procedurally unconscionable as an adhesion contract and substantively unconscionable due to discovery limitations, among other reasons. (*Id.* at p. 490.) Specifically, she contended that she required at least seven depositions to substantiate her claims, but the discovery provision only allowed for four, rendering it substantively unconscionable. (*Ramirez*, at p. 505.)

The court found that the discovery limitations in the arbitration agreement were not substantively unconscionable for two reasons. (*Id.* at pp. 505–506.) First, it stated that the unconscionability assessment of discovery provisions must only focus on "general factors that can be examined without relying on subsequent developments." (*Ramirez*, at p. 506.) These factors include: (1) the types of claims covered by the agreement, (2) the amount of discovery allowed, (3) the degree to which that amount may differ from the amount available in conventional litigation, (4) any asymmetries between the parties with regard to discovery, and (5) the arbitrator's authority to order additional discovery. (*Ibid.*) The discovery provision could not be substantively unconscionable simply because the plaintiff eventually required more depositions than the provision allowed in writing. (See *ibid.*) The court then emphasized that "giving the arbitrator authority to expand discovery [was] one way the [Armendariz] adequacy concern can be addressed." (*Ibid.*) The discovery provision could have been more precise,

but it gave the arbitrator the authority to resolve all discovery disputes in a manner that allowed a full and equal opportunity to discover and present evidence. (*Ibid.*) The court stated that it would assume that the arbitrator would act reasonably and in conformity with the law and that, where a contract is susceptible to two interpretations, a court should select the interpretation that makes the contract valid. (*Id.* at pp. 506–507.) The court concluded that the discovery provision permitted the arbitrator to order expanded discovery necessary to allow fair arbitration of the claim. (*Ibid.*) This interpretation eliminated any unconscionability. (*Id.* at p. 507.)

Here, as in Court concludes that, as in *Ramirez*, the agreement allows Plaintiff to access discovery that may be necessary to adequately arbitrate her FEHA claims. The Solutions InSTORE Program is not materially more restrictive than the agreement *Ramirez* approved. Under the agreement, there is no limitation to the additional discovery and no additional burden on either party to justify it with the arbitrator. (Cf. *Mills v. Facility Solutions Group, Inc.* (2022) 84 Cal.App.5th 1035, 1059 [finding a discovery provision that allowed the arbitrator to order discovery only upon showing of “substantial need” was unconscionable].) The Court does not find the discovery provisions to be substantively unconscionable.

3. Confidentiality Provision

Plaintiff's fifth challenge is to the confidentiality provision in Article 11(g) of the Plan Document which provides: "Unless prohibited by law, all aspects of an arbitration pursuant to these Solutions InSTORE Early Dispute Resolution Rules and Procedures, including the hearing and recording of the proceeding, shall be presumed confidential and not open to the public." (Ripak Decl. Ex. A (Plan Document), Art. 11(g).)

In *Ramos v. Superior Court* (2018) 28 Cal.App.5th 1042, 1066-1077 (*Ramos*), the court found a confidentiality provision in an arbitration agreement substantively unconscionable because it impaired the employee's ability to gather evidence in support of her claim. The provision required the employee to keep "all aspects" of the arbitration proceedings confidential. The court found the provision effectively prohibited an employee from contacting witnesses or conducting informal discovery, including by interviewing other employees. Such limitation "would not only increase [the employee's] costs unnecessarily by requiring her to conduct depositions rather than informal interviews, it also defeats the purpose of using arbitration as a simpler, more time-effective forum for resolving disputes. In addition, requiring discrimination cases be kept secret unreasonably favors the employer to the detriment of employees seeking to vindicate unwaivable statutory rights and may discourage potential plaintiffs from filing discrimination cases." (*Id.* at p. 1066.) For those reasons, the court found the provision to be unconscionable. (*Ibid.*)

The Court finds that the confidentiality provision in the Solutions InSTORE Plan Document is substantively unconscionable because it covers "all aspects" of the arbitration and it applies to FEHA discrimination claims of the sort Plaintiff brings here. By presuming confidentiality as to “all aspects” of the arbitration (which would include Levels 1-3), the provision creates the same chilling effect on informal information-gathering identified in *Ramos*. Defendants do not argue that the Solutions InSTORE provision is materially narrower than the provision in *Ramos*. Although the Solutions InSTORE provision uses the language "presumed confidential" rather than "strict confidence," both provisions reach "all aspects" of the arbitration make confidentiality the default position.

Defendants respond that the question of the confidentiality provision's enforceability has been delegated to the arbitrator under the Plan Document which states "[t]he Arbitrator shall make the determination as to whether the arbitration proceedings will remain confidential based on the existing law of the jurisdiction and this provision." Alternatively, Defendants argue this provision should be severed and the rest of the agreement enforced. (Reply, pp. 8-9.)

An arbitration agreement is permeated by unconscionability and should not be enforced when it "contains more than one unlawful provision. ... Such multiple defects indicate a systematic effort to impose arbitration ... not simply as an alternative to litigation, but as an inferior forum that works to the [employer's] advantage." (*Samaniego v. Empire Today, LLC* (2012) 205 Cal.App.4th 1138, 1149.)

Here, the Court finds that the confidentiality requirement in Article 11(g) is the only unconscionable provision. The Solutions InSTORE arbitration agreement is not permeated by unconscionability, and severance of the confidentiality provision is appropriate. In light of this conclusion, the Court need not resolve the delegation question.

Article 11(g) is severed, and the remainder of the agreement is enforced.

Disposition

Defendants' motion to compel arbitration is **granted**. The motion to dismiss is **denied**. The action is **stayed** pending the outcome of arbitration. The Court sets a post-arbitration status conference for **Monday, December 14, 2026 at 8:30 a.m.** The parties are ordered to file a joint statement with an update on the arbitration at least seven calendar days in advance of the hearing.